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Case Number: 23GDCV01971 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 15

Date: August 21, 2026

Case No: 23GDCV01971 Trial Date: Not yet set

Case Name: Tarakjian v. Hamadi, et al.

MOTIONS FOR JUDGMENT ON THE PLEADINGS

[CCP § 438 subd. (b)]

Moving Party: Defendant, Sarkis Minasyan / Defendants, Faycal Alex Hamadi, Dzhamila Keshishyan

Responding Party: Plaintiff, Rafi Tarakajian / Plaintiff, Rafi Tarakajian

RELIEF REQUESTED:

Grant defendant Sarkis Minasyan's motion for judgment on the pleadings on the First Amended Complaint.

Grant defendants Faycal Hamadi and Dzhamila Keshishya's motion for judgment on the pleadings on the First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Fraud [v. Hamadi and Minasyan]

- 2) Conspiracy to Defraud [v. Hamadi and Minasyan]
- 3) Intentional Misrepresentation [v. Hamadi and Minasyan]
- 4) Breach of Fiduciary Duty [v. Minasyan] [dismissed on 5/28/2024]
- 5) Breach of Oral Contract [v. Hamadi and Keshishyan]
- 6) Conversion [v. Hamadi and Keshishyan]
- 7) Theft – Receipt of Stolen Property [v. Hamadi]
- 8) Negligent Infliction of Emotional Distress [v. Hamadi]

REQUEST FOR JUDICIAL NOTICE

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evidence Code, § 452, subd. (d).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885.)

Pursuant to Plaintiff’s request, the Court takes judicial notice of: (1) this Court’s May 17, 2024, Minute Order; (2) the complaint in the matter Carp Property LLC v. Corona, et.al., filed in Santa Barbara Superior Court as Case No. 19CV04212; and (3) this Court’s February 2, 2024, Minute Order.

SUMMARY OF FACTS:

Plaintiff Rafi Tarakjian alleges that defendants Faycal Alex Hamadi, his wife, defendant Dzhamila Keshishyan, and an insurance broker, defendant Sarkis Minasyan, through false promises and misrepresentations induced plaintiff into loaning money in connection with various projects undertaken by Hamadi. Plaintiff alleges that upon discovering the deception, plaintiff demanded immediate repayment of the loaned funds from Hamadi, and that although Hamadi acknowledged the debt, he has refused to fulfill his obligation to pay plaintiff the money owed.

Plaintiff alleges that defendant Keshishyan introduced plaintiff to her niece, who plaintiff married in 2016, and that defendant Hamadi thereafter cultivated a friendship with plaintiff under the guise of family ties.

The First Amended Complaint (FAC) alleges that in January of 2017, Hamadi and Keshishyan approached plaintiff seeking assistance in purchasing property in Carpinteria, assuring plaintiff the property had a potential to be profitable. Hamadi requested that he be added to plaintiff’s bank account, which would allow him to demonstrate sufficient funds in reserve, and plaintiff added Hamadi as a co-signer so that Hamadi could qualify for a loan. Shortly thereafter, Hamadi and Keshishyan sought an additional \$65,000 from plaintiff to increase the down payment, with a promise to repay plaintiff within two months

after refinancing the house. Plaintiff loaned Hamadi and Keshishyan the \$65,000, and defendants qualified for the loan and the property was purchased in March of 2017. Despite defendants' assurances and promises to repay the \$65,000 within two months, defendants failed to repay the borrowed funds. The complaint alleges that beginning in June 2017 and continuing through October 2021, defendants made continued assurances and promises to plaintiff that they intended to repay the loan in its entirety, and that it was their intention to repay plaintiff in full.

The FAC also alleges that in June of 2017, Hamadi informed plaintiff that he purchased life insurance policies totaling over five million dollars, with the intent to sell the policies after the two-year contestable period. Hamadi requested that plaintiff pay the insurance premiums for these policies for one year, with the agreement that Hamadi would pay the premiums for the second year, and thereafter the policies would be sold, and the profits split. Hamadi also promised to repay the \$65,000 debt obligation to plaintiff from the sale of the insurance policies. In July and December of 2017, Hamadi purchased life insurance policies for his father and mother, and plaintiff began paying the premiums for the policies.

Plaintiff alleges that to induce plaintiff to assume the obligation of the insurance premium payments, Hamadi arranged a meeting between plaintiff, himself, and the servicing insurance agent, defendant Minasyan, and that during this meeting Minasyan and Hamadi together assured plaintiff that it was a common practice to sell insurance policies after two years, that it was easy to find a willing buyer, and that plaintiff would financially benefit from the sale of the policies. Plaintiff alleges that at the time, defendants Hamadi and Minasyan knew that the policies would not be sold after a two-year period, that it was not easy to find a willing buyer with Hamadi being the beneficiary of the policies but conspired to induce plaintiff to pay the premiums to prevent the policies from lapsing.

Plaintiff also alleges that life insurance agents such as Minasyan receive as a commission the percentage of the premiums paid in the first year, so that by making representations and inducing plaintiff to pay for the premiums, Minasyan placed his interests over those of plaintiff in order to earn his commission.

At the conclusion of the first year, Hamadi refused to pay the premiums for the policies, leaving plaintiff no choice but to continue making the premium payments to avoid a lapse in coverage. Hamadi also threatened to not repay plaintiff's loan and the payments plaintiff had made for the policies if plaintiff chose to discontinue paying the insurance premiums.

The FAC alleges that while plaintiff continued to make the premium payments, Hamadi refused to sell the policies or repay plaintiff, and that in September of 2021, plaintiff contacted Minasyan and demanded that Hamadi assume the payment obligations. Hamadi requested an exit plan from Minasyan, and Minasyan agreed to assume Hamadi's and plaintiff's rights in the policies, and 30 days after the rights were assigned, repay plaintiff, including 10% interest. Hamadi refused to sign the agreement and refused to acknowledge his obligation for the insurance premium payments made by plaintiff.

Plaintiff alleges that as a result of defendants' conduct, plaintiff has suffered economic damages in an amount in excess of \$274,697.24, plus interest, and that plaintiff has experienced severe emotional distress.

ANALYSIS:

"A motion for judgment on the pleadings is analogous to a general demurrer, but is made after the time to file a demurrer has expired." (International Assn. of Firefighters, Local 230 v. City of San Jose (2011) 195 Cal.App.4th 1179, 1196.) If the party moving for judgment on the pleadings is a defendant, there are only two permissible grounds for bringing the motion: the court lacks subject matter jurisdiction or the complaint "does not state facts sufficient to constitute a cause of action against that defendant." (CCP, § 438, subd. (c)(1)(b)(ii).)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994). Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-22). The parties' ability to prove their respective claims is of no concern. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 99.) Though the Court must accept the allegations of the complaint and answer as true (Gerawan Farming, Inc. v. Lyons (2000) 24 Cal.4th

468, 515), it will not do so for “conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts...” (Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc. (2006) 138 Cal.App.4th 1215, 1219-20).

If the court grants the motion, it may permit the opposing party to amend the pleading. (CCP, § 438, subd. (h)(1).) If granting leave to amend, the court must allow the party 30 days to file the amended pleading. (CCP, § 438, subd. (h)(2).) But “[i]f there is no liability as a matter of law, leave to amend should not be granted.” (Schonfeldt v. State of California (1998) 61 Cal.App.4th 1462, 1465.)

Minasyan's Motion for Judgment on the Pleadings

Minasyan moves for judgment on the pleadings as to the first, second, and third causes of action asserted against him in the FAC.

Statute of Limitations

The statute of limitations for an action for relief on the ground of fraud or mistake is three years, but “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (CCP, § 338, subd. (d).)

Minasyan argues that Plaintiff's fraud, conspiracy to defraud, and intentional misrepresentation claims are barred by the three-year statute of limitations. The FAC alleges that during a meeting between Plaintiff, Minasyan, and Hamadi, “Minasyan and Hamadi together assured Plaintiff that it was common practice to sell insurance policies after two years, and that it was easy to find a willing buyer. Minasyan and Hamadi also promised and assured Plaintiff that he would financially benefit from the sale of the policies.” (FAC, ¶ 23.) The FAC alleges that Plaintiff began paying the insurance policy premiums in 2017 (FAC, ¶22), thus, it is reasonable to infer that the meeting occurred sometime in 2017. Minasyan argues that accordingly, the applicable statute of limitations period expired in 2020. (Mot., p. 6:8.) This action was filed in September 2023. Minasyan further argues that Plaintiff should have discovered that the representations were false no later than 2019, as Minasyan and Hamadi allegedly represented that the policies would be sold in 2019. (Mot., p. 6:15-20.)

The Court already considered, and rejected, this argument. (5/17/2024 Minute Order [“It is not clear from the face of the pleading that the alleged misrepresentations by this defendant were or should have been discovered at some earlier time, as the fact that the policies were not in fact sold within two years does not suggest that the representations concerning the ease of doing so from a life insurance broker were false and could not continue to be relied upon.”].) In its prior ruling, the Court noted that the FAC “affirmatively alleges that defendants made continuous reassurances that plaintiff would be repaid, and specifically that Minasyan continued to be involved with the transaction, and ultimately proposed an exit plan, agreeing to assume the parties' rights and interests in the life insurance policy, which agreement was alleged to have occurred in October of 2021.” (5/17/2024 Minute Order; FAC, ¶¶ 18, 29, 31-33.) The FAC plausibly alleges that Plaintiff had no reason to discover the alleged fraud until October 2021, when Hamadi refused to execute the agreement assigning his and Plaintiff's interests in the policies to Minasyan. (FAC, ¶ 33.)

Accordingly, on the face of the pleading, the allegations are not barred by the statute of limitations.

First and Third Causes of Action, Fraud and Intentional Misrepresentation

The elements of fraud and intentional misrepresentation are the same: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184; Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.)

Minasyan next argues that the FAC does not sufficiently allege the elements for fraud and intentional misrepresentation. Specifically, Minasyan argues that Plaintiff's allegations that Hamadi refused to sell the policies "negate the allegation that Defendant Minasyan's representations regarding the salability of the insurance policies were false." (Mot., p. 7:10-11.) This argument is without merit. It was also already considered, and rejected, by this Court in its prior ruling. (5/17/2024 Minute Order, p. 7.) On a motion for judgment on the pleadings, the Court accepts the factual allegations in the complaint as true. (See *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) The FAC alleges that Minasyan "assured Plaintiff that it was common practice to sell insurance policies after two years" and "that it was easy to find a willing buyer." (FAC, ¶ 23.) The FAC also alleges that Hamadi refused to sell the policies. (FAC, ¶¶ 30-31.) These allegations are not mutually exclusive. One does not necessarily negate the other.

Similarly, Minasyan argues that the elements of causation and damages fail because any damages Plaintiff incurred are the result of Hamadi's refusal to sell the policies, not Minasyan's allegedly false representations. (Mot., p. 7:14-19.) The FAC alleges that both Minasyan's purported misrepresentations and Hamadi's subsequent refusal to sell contributed to Plaintiff's damages. These allegations may coexist and are not inherently inconsistent.

Accordingly, Plaintiff sufficiently states causes of action for fraud and intentional misrepresentation against Minasyan.

Second Cause of Action, Conspiracy to Defraud

To state a civil conspiracy a pleading must allege a civil wrong (for example, fraud or battery), the formation and operation of the conspiracy, a wrongful act done pursuant to the conspiracy, and resulting damage. (*Unruh v. Truck Ins. Exchange* (1972) 7 Cal.3d 616, 631, superseded by statute on other grounds in *Hendy v. Losse* (1991) 54 Cal.3d 723.)

Minasyan argues that there are no allegations regarding the formation and operation of a conspiracy, and no alleged wrongful conduct by Minasyan in furtherance of the conspiracy. (Mot., pp. 7:25-8:2.) The FAC alleges that "Hamadi and his insurance agent, Minasyan, conspired, planned and intentionally agreed among themselves to defraud Plaintiff." (FAC, ¶. 55). Courts have generally held that allegations that defendants "conspired together" or "did agree together" are sufficient allegations of the formation and operation of a conspiracy. (See *Farr v. Bramblett* (1955) 132 Cal.App.2d 36, 47; *Greenwood v. Mooradian* (1955) 137 Cal.App.2d 532, 535.) These allegations are made here. In addition, the FAC alleges that Minasyan falsely "assured Plaintiff that it was common practice to sell insurance policies after two years" and "that it was easy to find a willing buyer." (FAC, ¶ 23.) These allegations sufficiently assert wrongful conduct by Minasyan in furtherance of the alleged conspiracy.

Accordingly, Plaintiff sufficiently states a cause of action for conspiracy to defraud against Minasyan.

Defendant Sarkis Minasyan's Motion is DENIED.

Hamadi and Keshishyan's Motion for Judgment on the Pleadings

Hamadi and Keshishyan move for judgment on the pleadings on the entire FAC.

Res Judicata

"As generally understood, '[t]he doctrine of res judicata gives certain conclusive effect to a former judgment in subsequent litigation involving the same controversy.' [Citation.] The doctrine 'has a double aspect.' [Citation.] 'In its primary aspect,' commonly known as claim preclusion, it 'operates as a bar to the maintenance of a second suit between the same parties on the same cause of action. [Citation.]' [Citation.] 'In its secondary aspect,' commonly known as collateral estoppel, '[t]he prior judgment ... "operates" ' in 'a second suit ... based on a different cause of action ... "as an estoppel or conclusive adjudication as to such issues in the second action as were actually litigated and determined in the first action." [Citation.]' [Citation.] 'The

prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding. [Citations.]” [Citation.]” (Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 797.)

The prior final judgment on the merits not only settles issues that were not actually litigated but also every issue that might have been raised and litigated in the first action. It also precludes litigation of the same cause of action on a different legal theory or for different relief. (Lincoln Property Co., N.C., Inc. v. The Travelers Indemnity Co. (2006) 137 Cal.App.4th 905, 912-913.)

Hamadi and Keshishyan argue that the claims in the FAC are barred by the doctrine of res judicata as they fall within the scope of an earlier lawsuit litigated in the Santa Barbara Superior Court, titled Carp Property, LLC vs Corona, et al., case no. 19CV04212 (the “Prior Lawsuit”). (Mot., p. 8:18-26.) The Prior Lawsuit was settled pursuant to a signed written Settlement and Release Agreement (the “Settlement Agreement”). (Mot., p. 8:23-24.) The motion does not address what the Prior Lawsuit was about or explain what claims or issues were litigated there which are purportedly identical to those asserted in the present action. The Settlement Agreement is entered into between Carp Property, LLC and Hamadi and relates to real property located at 4647 Carpinteria Avenue, in Carpinteria, California. (Kreisman Decl., Ex. A.) In the opposition, Plaintiff asserts that the Prior Lawsuit related entirely to the purchase of a mixed-use commercial property in Carpinteria and the pre-closing disclosure failures of the sellers and real estate brokers. (Opp., p. 2:25-27; RJN, Ex. 1.) Plaintiff and Hamadi were cross-defendants in the Prior Lawsuit. (Opp., p. 2:22; Kreisman Decl., Ex. A.) Upon review of the complaint in the Prior Lawsuit and the corresponding Settlement Agreement, the Court finds that the prior action and this instant action involve different claims and issues. Accordingly, the doctrine of res judicata does not bar Plaintiff’s claims here.

Statute of Limitations

The statute of limitations for the first, second, third, sixth, and seventh causes of action [the fraud and theft claims] is three years (CCP, § 338 subds. (c)-(d)). The statute of limitations for the fifth [breach of oral contract] and eighth [NIED] causes of action is two years. (CCP, § 339, 335.1.)

Hamadi and Keshishyan argue that all of Plaintiff’s causes of action are barred by the applicable statute of limitations period. (Mot., pp. 9:4-11:18.) As to the fraud and theft causes of action, the FAC alleges that “Beginning June 2017 and continuing through October 2021, Hamadi and Ms. Keshishyan made continued assurances and promises to Plaintiff that they intended to repay the loan in its entirety, and that it was their intention to repay Plaintiff in full.” (FAC, ¶ 18.) As to the breach of oral contract cause of action, the FAC alleges that “Beginning in October, 2021, Hamadi and Ms. Keshishyan refused to repay Plaintiff’s loan.” (FAC, ¶ 87.) Thus, the FAC sufficiently alleges that Plaintiff had no reason to know of the alleged fraud or alleged breach of contract until October 2021. Thus, on the face of the pleadings, these claims are timely.

The negligent infliction of emotional distress claim is based upon Plaintiff’s allegation that Hamadi and Keshishyan cashed a check payable to Plaintiff without his authorization or signature. (FAC, ¶ 101.) The FAC alleges that in June of 2017, Plaintiff agreed to co-sign a vehicle lease for Hamadi and Keshishyan. (FAC, ¶ 101.) Plaintiff alleges that “after some time,” the check was cashed without his authorization. (FAC, ¶ 101.) The FAC does not affirmatively allege when the check was issued or when Plaintiff discovered the situation. Accordingly, it does not appear clearly and affirmatively from the pleading that the cause of action is time-barred.

Accordingly, on the face of the pleading, none of the causes of action are not barred by the applicable statutes of limitations.

Sufficiency of Claims

Hamadi and Keshishyan vaguely argue that none of Plaintiff’s causes of action are adequately pleaded, and that Plaintiff alleges, at most, a claim for breach of oral contract. (Mot., pp. 13:24-14:16.) This argument consists of little more than a

conclusory assertion and is unsupported by meaningful analysis. The Court finds that the FAC sufficiently alleges each of the asserted causes of action.

The motion is DENIED.

RULING:

Defendant Sarkis Minasyan's Motion for Judgment on the Pleadings is DENIED.

Defendants Faycal Alex Hamadi and Dzhamila Keshishyan's Motion for Judgment on the Pleadings is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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